HEADNOTE

> *"1. R.9.1 RoP cannot be interpreted as giving the parties the right to file motions of their own motion. Rather, it follows from R.36 RoP that any further submission of a reasoned motion by a party requires leave of the judge.*
> *2. The written submissions provided for in R.220.4 RoP constitute a motion and, if the judge rapporteur hears the other party, a reply. Any further submission requires leave of the judge rapporteur."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 2 479 680
Method for presenting rate-adaptive streams

KEYWORDS
Procedural motions | Leave of court | Written submissions | Judge discretion | Rules of procedure

Rule 9 Powers of the Court

SUMMARY
The Court of Appeal Luxembourg issued a procedural order concerning a method for presenting rate-adaptive streams. The patent at issue relates to technology for delivering video content that adapts to network conditions. According to the headnotes of the decision, Rule 9.1 of the Rules of Procedure does not permit parties to file motions on their own initiative. Rather, any further reasoned motion requires the judge's permission under Rule 36. The written submissions outlined in Rule 220.4 constitute a motion. If the judge rapporteur hears the other party, a reply follows. In particular, any additional submission beyond this exchange requires leave from the judge rapporteur.